

Mangal Singh v. State of U.P. — s.135 FIR not quashed

High Court of Judicature at Allahabad · Division Bench · 17 September 2014 · Criminal Misc. Writ Petition No. 16289 of 2014 · s.135 FIR quash refused; CrPC 41/41-A arrest; compounding available

HEADNOTE

A Division Bench of the Allahabad High Court refused to quash an FIR under Section 135 of the Electricity Act, 2003, holding that it disclosed a cognizable offence. Arrest had not been made. If arrest were effected for an offence not entailing a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003. The writ petition was disposed of.

FACTUAL SUMMARY

Mangal Singh filed a criminal writ petition in the Allahabad High Court seeking to quash FIR dated 15 June 2014, Case Crime No. 589 of 2014 under Section 135 of the Electricity Act, 2003, registered at Police Station Kuthond, District Jalaun. He had not been arrested. Counsel argued that the alleged offence could not attract a sentence exceeding seven years, so arrest should not be mechanical, and that the offence was compoundable. The State and the distribution licensee appeared.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash; arrest safeguards; compounding

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest is to be effected and the offence will not entail a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Applied to a s.135 FIR that disclosed a cognizable offence: quash refused; CrPC 41(1)(b)/41-A directed if sentence will not exceed seven years; compounding left to the accused under the 2005 Code and s.152. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE IS COMPOUNDABLE ON THESE FACTS

The Court said the petitioner may seek compounding if the offence is compoundable, without deciding that it is. ¶ 1